

KABC010238952022



THE Court OF THE II ADDITIONAL CITY CIVIL AND SESSIONS
JUDGE AT BANGALORE (C.C.H. No.17)

Dated this the 11th day of December, 2023.

:PRESENT:

Sri. D.P. Kumara Swamy, B.Com., LL.M.
VI Addl. City Civil & Sessions Judge
C/C of II Addl. City Civil and Sessions Judge, Bangalore.

LAND ACQUISITION CASE No.81/2022

PETITIONER:

The Special Land Acquisition Officer-2,
METRO, KIADB
1st Floor, Maharshi Aravind Bhavan
Nrupatunga Road
Bengaluru -560 010.

(Sri.B.B. Patil, Advocate)

VERSUS-

CLAIMANT:

N. Revathi
W/o M.V. Ramaswamy Raju and others
Kothanur village
Bengaluru.

(Sri.B.S. Radhanandan, Advocate)

OBJECTOR:

The State of Karnataka
Represented by Tahsildar

*Bangaluru South Taluka
Kandaya Bhavan
K.G. Road*

(District Government Pleader)

RESPONDENT:

*Bengaluru Metro Rail Corporation Ltd/ KIADB
3rd floor BMTC Complex K.H. Road
Shanthinagar
Bengaluru -560 0276.*

(Smt. M.B. Sindhu Shastri, Advocate)

Orders on I.A.No.1

**Impleading applicant/
proposed claimant:**

*A.R. Raja
S/o late. Arumugam Mudaliar
Aged about 48 years
Kothanur village
Uttarahalli Hobli
Bengaluru South Taluka
Bengaluru -560 076.*

*(Represented by Sri. R. S. Ravi,
learned Senior Advocate, along with
him, Sri. G.B. Nagappa, Advocate),*

**Orders on I.A. No.1 filed by the applicant under Order 1
Rule 10(2) R/w Section 151 of CPC**

*This is an application filed by the third party applicant by
name Sri. A.R. Raja s/o late. Sri. Arumugam Modaliyar under*

Order 1 Rule 10(2) R/w Section 151 of CPC for his impleadment as a claimant in this case.

2. In support of the relief claimed in this application, the third party applicant has filed his affidavit along with this application wherein he has stated to the following effect:

2.1 The third party applicant is an absolute owner in possession of 5 acres of land in Sy. No. 87 of Kothanur village, Uttarahalli Hobli, Bangaluru South Taluka, Bengaluru.

2.2 One Sri. K.C. Ramaiah had purchased said land under a registered sale deed dated 02.01.1942-43 bearing document No. 2522/1942-43 of the office of the Sub-registrar, Bengaluru South. Since then said Sri. K.C. Ramaiah was in actual possession and enjoyment of said land as an absolute owner thereof.

2.3 For his legal and family necessity, said Sri. K.C. Ramaiah had sold said land in favour of one Smt. Chinnamma and her children namely Sri. Govindaraju, Shamanna and Sri.

Arumugam Modaliyar under a registered sale deed dated 30.05.1944 bearing document No. 5913/1943-44, Book No. 1, volume No. 685 of the office of the said Sub-registrar.

2.4 Said Smt. Chinnamma and her said 3 sons passed away leaving behind the third party applicant and children of said Sri. Govindaraju as well as children of said Sri. Shamanna as their legal heirs to succeed to the estate of the deceased.

2.5 The third party applicant is a son of said late. Sri. Arumugam Modaliyar.

2.6 The legal representatives of said Sri. Shamanna and also the legal heirs of said Sri. Govindaraju have authorized the third party applicant under a registered GPA dated 05.01.2021 to act on their behalf.

2.7 On the death of said Smt. Chinnamma and her said 3 sons, their legal heirs have succeeded to their estate. After the death of said Smt. Chinnamma and her said 3 sons, their legal

heirs are in actual possession and enjoyment of said land as absolute owners thereof.

2.8 Said land was notified for acquisition for the purpose of “Bengaluru Metro Second Phase Reach 6” . The compensation amount is deposited in this Court.

2.9 Though the third party applicant and legal heirs of Sri. Govindaraju and legal heirs of Sri. Shamanna are the owners of said land, without giving any notice to them, this reference is made by the Special Land Acquisition Officer (for short “the SLAO”) to this Court. In fact, the third party applicant had filed his objections before the SLAO. In-spite of it, the SLAO has not shown the third party applicant as claimant in this case. The third party applicant is a necessary party to this case.

2.10 Very recently, the third party applicant, legal heirs of Sri. Govindaraju and legal heirs of Sri. Shamanna have come to know about the pendency of this case. After getting knowledge about pendency of this case, the third party applicant approached his counsel and as per advise of his counsel, the

third party applicant, legal heirs of Sri. Govindaraju and legal heirs of Sri. Shamanna have to get themselves impleaded as claimants in this case.

2.11 Immediately thereafter, the third party applicant has filed this application. The third party applicant is a proper and necessary party in this case in order to enable the Court effectually and completely to adjudicate and settle all the questions involved in this case.

2.12 If this application is allowed, no hardship would be caused to other parties to this case.

2.13 If this application is not allowed, the third party applicant would be put to irreparable loss and injury. Hence, I.A. No. 1 may be allowed

3. The claimant has filed statement of objections in writing and raised objections to this application to the following effect:

3.1 Said 5 acre of land claimed by the third party applicant was earlier classified as Sy. No. 87/3.

3.2 This case pertains to Sy. No. 87/2. Hence, neither third party applicant nor legal heirs of Sri. Govindaraju nor legal heirs of Sri. Shamanna are necessary or proper party / ies to this case.

3.3 2 acre 10 guntas of land in said Sy. No. 87/2 belonged to one Sri. R. Ramaiah. Said 2 acres 10 guntas of land in Sy. No. 87/2 was granted in favour of said Sri. R. Ramaiah.

3.4 A partition took place between children of said Sri. R. Ramaiah. By mistake of fact, confusing R. Ramaiah as K.C. Ramaiah, the third party applicant might have filed this application. The documents on which the third party applicant is relying on in support of this application, are irrelevant to the acquired land in this case.

3.5 The third party applicant may verify the grants offered in favour of late. Sri. Arumugam Modaliyar or Sri. K.C. Ramaiah

and file necessary application for his impleadment in those cases. By creating a doubt, the third party applicant cannot get himself implead in all the matters pertaining to Sy. No. 87 which is totally measures 67.6 acres. The claimant is an owner of site formed in said 2 acres 10 guntas of land belonging to R. Ramaiah in the interest of justice ad equity.

4. The respondent – BMRCL has filed its statement of objections in writing to this application and stated to the following effect:

4.1 The third party applicant has not produced any title documents in respect of 5 acres of land claimed by him in this application. The respondent – BMRCL has not acquired any land belonging to late. Sri. Arumugam Modaliyar or land of the present third party applicant in Sy. No. 87 of Kothanur village for Metro Rail Project.

4.2 The total extent of land in said Sy. No. 87 measures 67 acres 9 guntas. It belonged to the Government. Though it is claimed that said Sy. No. 87 was sub-divided into 8 blocks and

7 out of those portions were granted / acquired in favour of 7 persons namely (1) Sri. R. Ramaiah S/o Ranganna – 10 acres (Block No.2); (2) Sri. Arumugam Modaliyar – 15 acres (Block No.3); (3) Sri. Narasoji Rao – 5 acres (Block No.4); (5) Sri. G.N. Madhava Rao – 5 acres (Block No.6); (6) Sri. K. Anantharaju – 5 acres (Block No.7); and (7) Sri. Vasantha Vallabharaya Swamy – 20 acres (Block No.8), yet there is no hissa phodi conducted by survey authorities till now. But, however, in RTC the block numbers are mentioned as sub numbers.

4.3 *The respondent – BMRCL is also not having knowledge that said Sri. K.C. Ramaiah had sold said 5 acres of land in favour of said Smt. Chinnamma and her said 3 sons for his legal and family necessities, under a registered sale deed dated 30.05.1944.*

4.4 *It is not within the knowledge of the respondent – BMRCL that said Smt. Chinnamma and her said 3 sons have passed away leaving behind applicant, legal heirs of said Sri. Govindaraju and legal heirs of said Sri. Shamanna, to succeed to their estate.*

4.5 The respondent – BMRCL has categorically denied that the third party applicant, legal heirs of Sri. Govindaraju and legal heirs of Sri. Shamanna are in possession and enjoyment of said 5 acres of land.

4.6 The name of the impleading applicant is not reflected as khathedar of any portion of the land in Sy. No. 87 of Kothanur village in the General Awards passed by the SLAO.

4.7 The impleading applicant has not effectively appeared before the SLAO.

4.8 The third party applicant has filed this application at a belated stage with an intention to protract the proceedings and also with an ulterior motive to knock off the handsome compensation.

4.9 The respondent – BMRCL has offered handsome compensation package to the land losers in said Sy. No. 87. The attempt of the impleading applicant in filing this application

at the fag end of the proceedings has to be scrutinized with due diligence.

4.10 The judicial discretion has to be exercised by keeping in mind the facts and circumstances of the case.

4.11 The impleading applicant is neither a proper nor a necessary party to this case.

4.12 The present application lacks bonafides.

4.13 Hence, I.A. No. 1 may be rejected.

5. Heard the arguments of: (1) the learned Senior Advocate for the third party applicant; (2) the learned Advocate for the claimant; (3) the learned Advocate for the petitioner; (4) the learned Advocate for the objector and (5) the learned Advocate for the respondent. The learned Advocate for the third party applicant has filed written arguments.

6. The following points that would arise for my consideration are:

1) Whether the third party applicant is a necessary party or a proper party to this case ?

2) Whether this Court has jurisdiction to implead the third party applicant under Order 1 Rule 10(2) of CPC as the present proceedings is initiated on reference under sections 30 and 31 of the 1894 Act ?

3) What order?

7. My answers to the above points are:

Point No.1 : In the negative

Point No.2 : In the negative

Point No.3 : As per final order, for the following:

REASONS

8. **Point No.1:** The third party applicant has filed his application/objection before the SLAO of KIADB on 17.03.2022 wherein he has stated to the following effect. Vide grant order No. 45/J.D.28-32 dated 06.05.1930, 17 acres of land in Sy. No. 87/3 was granted for accept on price in favour of Sri. Arumugam Modaliyar. Said Sri. Arumugam Modaliyar had executed a Registered Gift Deed bearing Document No.2885/36-37, Vol. no.384, pages 89-90 dated 27.05.1937 in respect of said 17 acres of land in favour of his elder sister

Smt. Late. Kannammal W/o Mahadeva Modaliyar. Similar representation was given by the third party applicant and one Smt. D. Kalavathi before the SLAO on 25.04.2022. In addition to said facts, the other facts are stated by said persons in said representation dated 25.04.2022 to the following effect. Smt. Chinnamma, Sri. Govindaraju Modaliyar and Sri. Arumugam Modaliyar have purchased 5 acres of land in Sy. No. 87 from one K.C. Ramaiah under a registered sale deed bearing Document No. 5913/44-45, Vol. No. 685, pages 203-204 dated 30.05.1944. Sri. Munishami has purchased 5 acres of land in Sy. No. 87 from Sri. Maranna on 26.07.1944 under a registered sale deed bearing Document No. 512/44-45, Vol. No. 712, pages 33-34.

9. *Index of lands in respect of 15 acres of land in Sy. No. 87/3 of Kothanur village contains as many as seven entries concerning said land in Sy. No. 87/3. They are:*

9.1 *3 acres of land in said Sy. No. 87/3 is entered in the name of one Sri. Krishnamaraju S/o Sri. Narasaraju. A registered sale deed bearing Document No. 6104/62-63 dated*

26.02.1962 of the jurisdictional Sub-Registrar Office and mutation Order as per M.R. No. 37/1973-74 are the basis for the said entry. Record of Rights number is entered as 1521.

9.2 *2 acres of land in said Sy. No. 87/3 is entered in the name of one Sri.Venkatappa S/o Sri. Muniyappa. A registered sale deed bearing Document No.353/1973-74 dated 25.10.1970 of the jurisdictional Sub-Registrar Office and mutation Order as per M.R. No.42/1973-74 are the basis for the said entry. Record of Rights number is entered as 1532.*

9.3 *2 acres of land in said Sy. No. 87/3 is entered in the name of one Smt. Lakshamma W/o Sri. K. Krishnamaraju. A registered sale deed bearing Document No.5009/1973-74 dated 14.03.1974 of the jurisdictional Sub-Registrar Office is the basis for the said entry. Record of Rights number is entered as 1534.*

9.4 *3 acres of land in said Sy. No. 87/3 is entered in the name of one Sri. Lakshmana S/o Sri. Chandrappa. A registered sale deed bearing Document No.3561/1974-75*

dated 27.08.1974 of the jurisdictional Sub-Registrar Office and mutation Order as per M.R. No.7/1974-75 are the basis for the said entry. Record of Rights number is entered as 1546.

9.5 *1 acre 20 guntas of land in said Sy. No. 87/3 is entered in the name of one Sri. Muniswamiraju S/o Akkaraju. A registered sale deed bearing Document No.2401/1969-70 of the jurisdictional Sub-Registrar Office and mutation Order as per M.R. No.1/1979-80 are the basis for the said entry. Record of Rights number is entered as 1759.*

9.6 *1 acre 20 guntas of land in said Sy. No. 87/3 is entered in the name of one Sri.Yallappa S/o Sri. Muthappa. A registered sale deed bearing Document No.3578/1972-73 of the jurisdictional Sub-Registrar Office and mutation Order as per M.R. No.2/1979-80 are the basis for the said entry. Record of Rights number is entered as 1760.*

9.7 *1 acre 20 guntas of land in said Sy. No. 87/3 is entered in the name of one Smt. Lakshamma W/o Sri. K. Krishnamaraju. A registered sale deed bearing Document*

No.1859/1978-79 of the jurisdictional Sub-Registrar Office and mutation Order as per M.R. No.3/1979-80 are the basis for the said entry. Record of Rights number is entered as 1761.

10. Encumbrance Certificate in respect of said Sy. No. 87/3 of Kothanur village shows the following entries:

10.1 A Registered Gift Deed dated 27.05.1937 bearing document No. 2885, Vol. No. 384, Page No. 208 executed by Sri. Arumugam Modaliyar in favour of Smt. Kannammal in respect of 17 acres of land in Sy. No. 87.

10.2 A Registered Sale Deed dated 24.08.1961 bearing document No. 2869/1961-62 Vol. No.263, Page No. 73 to 75 executed by Sri. Lakshmana Raju in favour of Sri. Chinnappa in respect of 6 acres of land in Sy. No. 87/3.

10.3 A Registered Sale Deed dated 15.07.1963 bearing document No.1967/1963-64, Vol. No.407, Page No. 28 to 30 executed by Sri. Chinnappa in favour of Sri.

Lakshmanaraju in respect of 6 acres of land in Sy. No. 87/3.

10.4 A Partition Deed dated 06.06.1968 bearing document No.1218/1968-69, Vol. No.708, executed by Sri. Lakshmanaraju and Narasaraju in favour of Smt. Papamma, Sri. Venkataraju and Sanjeevaraju in respect of 2 acres 20 guntas in 'B' schedule, 1 acre 20 guntas in 'C' schedule and 2 acres in 'D' schedule of land in Sy. No. 87/3.

10.5 A Registered Sale Deed dated 20.07.1968 bearing document No.1932/1968-69, Vol. No.713, executed by Sri. Sanjeevaraju in favour of Sri. S.R. Chikkavenkatappa in respect of 2 acres of land in Sy. No. 87/3.

10.6 A Lease Deed dated 09.09.1968 bearing document No.2884/68-69 Vol. No.780, executed by Sri.Venkataraju in favour of Sri. Ayilraju in respect of 1 acre 20 guntas of land in Sy. No. 87/3.

10.7 A Registered Sale Deed dated 18.08.1969 bearing document No.2401/1969-70, Vol. No.775, executed by Sri. Venkataraju in favour of Sri. Muniswamyraju in respect of 1 acre 20 guntas of land in Sy. No. 87/3.

10.8 A Registered Sale Deed dated 17.10.1970 bearing document No.3530/1970-71, Vol. No.839, executed by Sri. S.V. Ananthappa in favour of Sri. Sanjeevaraju in respect of 2 acres of land in Sy. No. 87/3.

10.9 A Registered Sale Deed dated 17.10.1970 bearing document No.3531/1970-71, Vol. No.842, executed by Sri. Sanjeevaraju in favour of Sri. Venkatappa in respect of 2 acres of land in Sy. No. 87/3.

10.10 A Registered Sale Deed dated 15.11.1972 bearing document No.4948/1971-72, Vol. No.966, executed by Sri. K.M. Muniswamappa in favour of Sri. K. Krishnamaraju in respect of 4 acres of land in Sy. No. 87/3.

10.11 A Registered Sale Deed dated 25.02.1974 bearing document No.5009/1972-73, Vol. No.1036, executed by Sri. Venkatappa in favour of Smt. Lakshmamma in respect of 2 acres of land in Sy. No. 87/3.

10.12 A Registered Sale Deed dated 26.06.1974 bearing document No.3061/1973-74, Vol. No.1070, executed by Sri. K. Narasaraju and K. Vasaraju in favour of Sri. Lakshmana in respect of 3 acres of land in Sy. No. 87/3.

10.13 A mortgage deed dated 08.09.1975 bearing document No.207/1974-75, Vol. No.71, page No.37 executed by Sri. K. Krishnaraju in favour of PLDB, Bengaluru South in respect of 4 acres of land in Sy. No. 87/3.

10.14 A mortgage deed dated 29.11.1975 bearing document No.PV 2, Vol. No. 71, page no.95 executed by Sri. Lakshmana in favour of PLDP, Bengaluru South in respect of 3 acres of land in Sy. No. 87/3.

10.15 A registered sale deed dated 26.05.1979 bearing document No.955/1979-80, executed by Sri. Yellappa in favour of Smt. Lakshmamma in respect of 1 acre 20 guntas of land in Sy. No. 87/3.

10.16 A registered sale deed dated 20.11.1980 bearing document No.8373/1980-881, executed by Sri. G.V. Shyamaraao in favour of Sri. Muniswamyraju in respect of 5 acres of land in Sy. No. 87/3.

10.17 A registered sale deed dated 14.02.1983 bearing document No.6313/1983-84, executed by Sri. Narasaraaju and others in favour of Smt. Susheela N. Reddy in respect of 2 acres of land in Sy. No. 87/3.

10.18 A registered sale deed dated 13.06.1986 bearing document No.1158/1986-87, Vol. No. 2437, executed by Sri. Lakshmana in favour of Sri. C. Munireddy in respect of 3 acres of land in Sy. No. 87/3.

10.19 *A release deed dated 08.07.1986, Vol. No. 2162, executed by PLDB in favour of Sri. Lakshmana in respect of Sy. No. 87/3.*

10.20 *A mortgage deed dated 22.03.1988 bearing document No.145/1987-88, executed by K. Krishnamaraju in favour of PLDB in respect of 4 acres of land in Sy. No. 87/3.*

10.21 *A registered sale deed dated 17.05.1989 bearing document No.2410/1989-90, executed by Smt. Papamma Narasaraju in favour of A.M.Ramaraju in respect of 2 acres 20 guntas of land in Sy. No. 87/3.*

10.22 *A registered sale deed dated 10.08.1960 bearing document No.2249/1960-61, Vol. No. 202, page No. 50-53, executed by Sri. K.C. Ramaiah in favour of Sri. Lakshmanaraju in respect of 6 acres of land in Sy. No. 87/3.*

10.23 *A registered sale deed dated 07.09.1972 bearing document No.3676/1972-73, Vol. No. 956, page No. 206-208,*

executed by Sri. Muniswamyraju in favour of Sri. Yallappa in respect of 1 acre 20 guntas of land in Sy. No. 87/3.

11. A report dated 07.09.1992 of the Deputy Commissioner, Bengaluru District submitted to the Commissioner of B.D.A. shows that the facts are reported to the following effect: Sy. No.87 is divided into 8 Sub-survey Numbers as follows:

Sl. No.	Sy. No.	Extent A-G	Names of occupiers of lands
01	87/1	2-06	As per RTC Sarakari Muffath Kaval
02	87/2	10-00	R. Ramaiah S/o Ranganna
03	87/3	15-00	Late. Sri. Arumugam Modaliyar
04	87/4	05-00	Narasogi Rao
05	87/5	05-00	Bar Bar Venkataswamy
06	87/6	05-00	N. Mada Rao
07	87/7	05-00	K. Anantha Rao
08	87/8	20-00	Vasanthapura Vallabharaya Swamy

12. A report dated 05.01.2005 was submitted by the Special Tahsildar, Bangaluru South Taluka, to the Special Deputy Commissioner. Therein at para 2, page 2, the following informations are provided. As per Index of lands, the names of the persons in possession of lands, extent of land held by each

one of them, and mode of acquisition of land by each one of them is reported therein to the following effect:

Sl. No.	Sy.No.	Extent of land A-G	Names of occupiers	Nature of right
01	87/1	02-06	-	-
02	87/2	10.00	R. Ramaiah S/o Ranganna	Grant in the year 1930-31
03	87/3	15-00	Late. Sri. Arumugam Modaliyar	Grant in the year 1930-31
04	87/4	05-00	Narasoji Rao	Grant in the year 1930-31
05	87/5	05-00	Barber Venkatashami	Grant in the year 1930-31
06	87/6	05-00	H.N. Madhav Rao	Grant in the year 1930-31
07	87/7	05-00	K.Anantharaju	Grant in the year 1930-31
08	87/8	20-00	Vasantha Vallabharaya Swami Temple	Grant in the year 1933-34
09	87/8	05-00 (out of said 20 acres)	Byrappa	MR No.18/1984- 85
10	87/8	05-00 (out of said 20 acres)	Byrappa	MR No.17/1984- 85

Total extent of land in Sy. No. 87 is 65 acres.

13. At para 13 and 14 in said report dated 05.01.2005, it is reported to the following effect: The names of the occupiers of lands in 10 acres of land in Sy. No. 87/2 of Kothanur village as

per registered partition deed bearing Document No. 6328/1979-80 dated 13.10.1979 are as follows:

Sl. No.	Names of occupiers	Extent A - G
01	Sri. R. Rangaswamy	02-30
02	Sri. R. Somashekhar	04-10
03	Smt. R. Savithri	0-20
04	Smt. R. Gowramma	02-10
05	Total of 1 to 4	10-00

Said paras 13 and 14 show the further details to the following effect:

13.1 *Said Sri. R. Rangaswamy has sold said 2 acres 30 guntas of land in Sy. No. 87/2 of Kothanur village in favour of Sri. C. Munireddy S/o Chennappa under a registered sale deed bearing document No. 4232/1981-82 dated 31.10.1982.*

13.2 *Said Sri. R. Somashekar has sold said 4 acres 10 guntas of land in Sy. No. 87/2 of Kothanur village in favour of Smt. Susheela N. Reddy under a registered sale deed bearing document No. 4231/1981-82 dated 02.11.1982.*

13.3 *Said Smt. Savithri has sold said 30 guntas of land in Sy. No. 87/2 of Kothanur village in favour of Sri. C. Munireddy S/o Chennappa under a registered sale deed bearing document No. 4333/1981-82 dated 18.11.1982.*

13.4 *In exchange deed bearing document No. 1159/1986-87 dated 13.06.1986 entered into between said Smt. Susheela N. Reddy and said Sri. C. Munireddy S/o Chennappa, said Smt. Susheela N. Reddy has given the said 4 acres 10 guntas of land in Sy. No. 87/2 in favour of said Sri. C. Munireddy S/o Sri. Chennappa.*

13.5 *Thus, by virtue of said two sale deeds and said exchange deed, said Sri. C. Munireddy S/o Chennappa has become owner of 7 acres 30 guntas of land in Sy. No. 87/2 of Kothanur village.*

13.6 *Said Sri. . Munireddy S/o Sri. Chennappa has executed a registered gift deed bearing document No. 18169/2003-04 dated 17.10.2003 in respect of said 7 acres 30 guntas of land*

in favour of Sri. N. Swaroop Kumar S/o late. Sri. C. Narayana Reddy.

13.7 After the demise of said Smt. R. Gowramma vide M.R. No.14/2004-05, the mutation in respect of said 2 acres 10 guntas of land in Sy. No. 87/2 of Kothanur village is jointly mutated in the names of Sri. R. Somashekar S/o late. Sri.R. Ramaiah, Sri. R. Ramakrishna S/o late. Sri. R. Ramaiah, Smt. R. Savithri D/o late. Sri. R. Ramaiah, Smt. Saraswathi W/o late. Sri. R. Rangaswamy, and Sri. R. Ramamurthy S/o late. R. Rangaswamy.

14. In said report dated 05.01.2005, it is reported to the following effect, at paras 15 and 16: As per sale transactions, Index of lands in respect of 15 acres of land in Sy. No. 87/3 of Kothanur village shows the entries to the following effect: The table showing names of owner and extents of lands held by them out of said 15 acres is as follows:

Sl. No.	Names of occupiers	Extent A - G
01	Sri. Venkataraju	01-20
02	Sri. Sanjeevaraju	02-00

03	Sri. Narasaraju S/o Smt. Papamma	02-20
04	Sri. K.M. Munishamappa, Smt. Puttamma, Sri. K.R. Anand, Smt. K.R. Shantha and Smt. K.R. Jagadamba	04-00
05	Sri. Chennakrishnashetty	03-00
06	Sri. Naresaraju S/o Sri. Veeraswamyraju, and Smt. Chennamma	02-00
07	Total of 1 to 6	15-00

14.1 Further details in said para 15 shows the following:

Vide a registered sale deed dated 15.11.1972 bearing document No. 4984/1972-73 said Sri. K.M. Munishamappa, Smt. Puttamma, Sri. K.R. Anand, Smt. K.R. Shantha and Smt. K.R. Jagadamba have sold said 4 acres of land, held by them, in favour of Sri. K. Krishnamaraju S/o late. Sri. Muniswamy Raju. After the demise of said Sri. K. Krishnamaraju, his sons Sri. K. Narasaraju and Sri. K. Vasuraju sold 3 acres (out of said 4 acres) of land in favour of Sri. C. Munireddy S/o Chennappa under a registered sale deed bearing document No.1158/1986-87. In turn, said Sri. C. Munireddy has executed a registered gift deed bearing

document No. 18618/2003-04 dated 17.10.2003 in respect of said 3 acres of land in favour of Sri. N Shashank Kumar S/o late. Sri. C. Narayana Reddy vide M.R. No.21/2003-04. Said 3 acres of land is mutated in the name of said Sri. N. Shashank Kumar.

14.2 *Said Sri. Narasarju S/o Sri. Veeraswamyraju, and Smt. Chennamma have sold 2 acres of land held by them in Sy. No. 87/3 of Kothanur village in favour of Smt.Susheela N. Reddy under a registered sale deed bearing document No. 6313/1983-84 dated 14.12.1983. Vide M.R. No.53/1987-88, said 2 acres of land is mutated in the name of said Smt. Susheela N. Reddy.*

15. *A certified copy of judgment in O.S. No. 401/1997 on the file of IX Addl. City Civil and Sessions Court, (CCH-5), Bengaluru, in the matter of Smt. Lakshamma Vs. The State of Karnataka and another, DD on 02.11.2009, shows that 3 acres 20 guntas of land in Sy. No. 87/3 of Kothanur village was the suit property in O.S.*

No.401/1997. The suit was decreed in favour of Smt. Lakshmamma.

16. A certified copy of the order of the Hon'ble High Court dated 09.10.2012 in W.P. No.31892/2009 (LA-BDA) C/w W.P. Nos.32095-32098/ 2009 (LA-BDA) , W.P. Nos.377-378/2002 (LA-BDA) and RFA No.259/2010 in the matter of Society of Sons of the Immaculate Conception of India and others Vs. Addl. Special Land Acquisition Officer and others shows that the Hon'ble High Court had quashed the preliminary notification dated 23.03.1988 issued by the BDA acquiring 57 acres 11 guntas of land in Sy. No. 87 of Kothanur village without showing sub-survey Nos.87/1 to 87/8 and without giving notice to various owners of the lands in Sy. Nos.87/1 to 87/8.

17. A certified copy of order of Special Deputy Commissioner, Bengaluru South Sub-Division, Bengaluru, in RRT (2) CR-17/2021-22 in the matter of the Government of Karnataka Vs. Balaji K. and another, DD

on 10.11.2022 also deals in detail various title deeds, mutation entries, IL and RR entries, and above referred judgments/orders. The said order shows that 15 acres of land in Sy. No. 87/3 of Kothanur village was sold in public auction on 18.04.1941 and as such, Smt. Kamalamma Mahadev Mudaliar lost the said property in the said auction. It also shows that vide M.R. No.7/1940-41, said 15 acres of and is mutated in the name of the auction purchaser.

18. It becomes clear from the case projected by the third party applicant in the application for his impleadment and also in the representation given by him before the SLAO that he is laying claim on the basis of said grant order and said two sale deeds. But, however, in the application for impleadment, he has restricted his claim for compensation based on sale deeds dated 02.01.1942 and 30.05.1944. Let that be as it may, the third party applicant has not challenged several title deeds

concerning the lands in Sy. No. 87/3 and Sy. No. 87/2 of Kothanur village which are noticed supra. The third party applicant has not participated in several proceedings concerning said 2 lands before this City Civil Court and also before the Hon'ble High Court of Karnataka which are noticed supra. The third party applicant has not challenged several mutation entries noticed supra. This Court is considering similar application like the one on hand, not in this case alone but in other 51 cases. In other words, third party applicant has filed impleading application in 52 cases stating the very same fact. If files of 52 cases are opened, one can find that several RTC entries are also produced by the parties/claimants. The third party applicant seems to have not challenged any of those RTC entries. The claim of the third party applicant regarding flow of title stops in the year 1944. The third party applicant has not produced encumbrance certificates in respect of lands claimed by them, they have not produced mutation entries and they have not

produced RTC entries etc., to establish that the flow of title and possession of those lands continued with the ancestors of the third party applicant, even much subsequent to 1944.

19. Above all, under a registered sale deed dated 04.12.1947, Smt. Chennamma W/o Kodagaiah Mudaliar has sold 5 guntas of land in Sy. No. 87 of Kothanur village (which is claimed by the third party applicant in this case).

20. Order of the Hon'ble High Court of Karnataka in W.P.No. 11878 of 2023 (LA-KIADB) in the matter of Sri. Balaji k and others Vs. The Karnataka Industrial Areas Development Board and others, DD on 19.06.2023, and also order of the Hon'ble High Court of Karnataka in the matter of Society and sons of Immaculate Conception of India (supra) show that neither the third party applicant nor any other member of Mudaliar family (to which the third party applicant belongs) was/were parties to the said cases.

21. Bearing in mind several salient features of the facts of the case on hand, which are noticed supra in brief, it would be apposite to refer the judgments. The learned Advocate for the claimant Shobha Limited (In L.A.C. No. 97/2022, 98/2022 and 126/2022) has relied upon a judgment of the Hon'ble Supreme Court in Criminal Appeal No.1452/2023 (@ SLP (Crl) No. 2480/2021) Sri. Gulam Mustafa Vs. The State of Karnataka and others, DD on 10.05.2023, wherein the Hon'ble Supreme Court has ruled thus:

"24. Having considered the matter, this Court finds that a case for interference is made out. The basic facts to be noticed are: (a) that the land-owners with whom GMID had entered into the JDA, had purchased the land in 1954-1955, and;(b) the occupancy rights were also created in the original land-owners' favour on 09.07.1961. From then onwards, no dispute was raised by any person before any authority and only after the GMID entered into the JDA with the original land-owners in the year 2009, obtained all clearances from the authorities in their favour, started the construction work and built apartments numbering more than

400, sold them to the buyers/allottees in the year 2017, did the present dispute arise. This itself indicates a lack of bonafide. We have mused as to why the complainant and her family members, if the land was theirs, would sit by and watch on as fence-sitters for a long period of time.

36. What is evincible from the extant case-law is that this Court has been consistent in interfering in such matters where purely civil disputes, more often than not, relating to land and/or money are given the colour of criminality, only for the purposes of exerting extra-judicial pressure on the party concerned, which, we reiterate, is nothing but abuse of the process of the court. In the present case, there is a huge, and quite frankly, unexplained delay of over 60 years in initiating dispute with regard to the ownership of the land in question, and the criminal case has been lodged only after failure to obtain relief in the civil suits, coupled with denial of relief in the interim therein to the respondent no.2/her family members. It is evident that resort was now being had to criminal proceedings which, in the considered opinion of this Court, is with ulterior motives, for oblique reasons and is a clear case of vengeance.”

22. In (2012) 5 SCC 370: (2012) 3 SCC (Civ) 126: 2012 SCC Online SC281 Maria Margarida Sequeira Fernandes and others Vs. Erasmo Jack De Sequeira (Dead) through Lrs, at paras 71 to 77, the Hon'ble Supreme Court has ruled thus:

“71. Apart from these pleadings, the Court must insist on documentary proof in support of the pleadings. All those documents would be relevant which come into existence after the transfer of title or possession or the encumbrance as is claimed. While dealing with the civil suits, at the threshold, the Court must carefully and critically examine pleadings and documents.

72. The Court will examine the pleadings for specificity as also the supporting material for sufficiency and then pass appropriate orders.

73. Discovery and production of documents and answers to interrogatories, together with an approach of considering what in ordinary course of human affairs is more likely to have been the probability, will prevent many a false claims or defences from sailing beyond the stage for issues.

74. If the pleadings do not give sufficient details, they will not raise an issue, and the Court can reject the claim or pass a decree on admission. On vague pleadings, no issue arises. Only when he so establishes, does the question of framing an issue arise.

Framing of issues is an extremely important stage in a civil trial. Judges are expected to carefully examine the pleadings and documents before framing of issues in a given case.

75. In pleadings, whenever a person claims right to continue in possession of another property, it becomes necessary for him to plead with specificity about who was the owner, on what date did he enter into possession, in what capacity and in what manner did he conduct his relationship with the owner over the years till the date of suit. He must also give details on what basis he is claiming a right to continue in possession. Until the pleadings raise a sufficient case, they will not constitute sufficient claim of defence.

76. Dr. Arun Mohan in his classic treatise on "Justice, Courts and Delays" has dealt with these fundamental principles of law exhaustively.

77. The Court must ensure that pleadings of a case must contain sufficient particulars. Insistence on details reduces the ability to put forward a non-existent or false claim or defence. In dealing with a civil case, pleadings, title documents and relevant records play a vital role and that would ordinarily decide the fate of the case."

23. *In (1994) 1 SCC 1 S.P. Chengalvaraya Naidu (Dead) by LRs Vs. Jagannath (Dead) by LRs and others, the Hon'ble*

Supreme Court has emphasised that there is a legal duty upon the plaintiff to come to Court with a true case and prove it by true evidence and explained the said principles in the following words at para 5:

“ 5.The principle of "finality of litigation" cannot be pressed to the extent of such an absurdity that it becomes an engine of fraud in the hands of dishonest litigants. The courts of law are meant for imparting justice between the parties. One who comes to the court, must come with clean hands. We are constrained to say that more often than not, process of the court is being abused. Property-grabbers, tax-evaders, bank-loan-dodgers and other unscrupulous persons from all walks of life find the court-process a convenient lever to retain the illegal-gains indefinitely. We have no hesitation to say that a person, who's case is based on falsehood, has no right to approach the court. He can be summarily thrown out at any stage of the litigation.”

24. *In (2014) 3 KCCR 2200 Boramma Vs. Boraiah explaining the concept of speedy trial/speedy justice, at para 9, the Hon'ble High Court of Karnataa has sounded a note of caution in the following words:*

“9..... Thus, the object of these two amendments is to facilitate speedy disposal of cases. The parties, before going to Court should apply their mind, make full preparation and then enter the Court Hall and not to search for documents after the trial begins. Though with the avowed object, the Parliament has done its bit, still the Bar and the Bench have yet to reconcile to this Legal position and try to follow this mandate and law literally....”

25. In the instant case, the third party applicant wants to get impleaded as a claimant not only in this case, but also in other 51 cases, alleging that the third party applicant has lost his land in the land acquisition proceedings. At one breath, the third party applicant claims that he is the sole and absolute owner of 5 acres of land mentioned in the affidavit filed annexed to this application. At the other breath, he says that after the demise of Smt. Chinnamma and her three sons, their legal heirs have succeeded to the said 5 acres of land. The third party applicant has failed to produce title deeds, encumbrance certificates, mutation register extracts, revenue records, tax paid receipts, khatha extracts or any other documents, if any, to prima facie show the existence of his

right, title, or interest over the said 5 acres of land or any other piece of land or much less, over the acquired land, as on the date of Preliminary Notification. On the other hand, much water is flown in (as discussed supra) which would clearly demonstrate that the claim of the third party applicant must be false. Though several sale/partition/gift/conveyance instances spreading over several decades are brought on record by the parties to this case, the third party applicant has not tried to answer the substance by making statements and by producing the documents subsequent to the year 1944. Though the lands are in litigation for several decades, the third party applicant is not shown to be a party to any such litigation. All these facts and circumstances, to my mind, would indicate that the claim of the third party applicant must be false and at any rate do not indicate that the third party applicant is a necessary party to this case. Absolutely no iota of materials are placed on record by the third party applicant to demonstrate that the third party applicant or any of the legal heirs of said Smt. Chinnamma and her deceased 3 sons have challenged the title deeds, mutation entries, revenue entries etc., which are brought on record by the parties to this case (and other 51 cases, where

the third party applicant has filed similar application which are considered and disposed off today) which clearly falsify the claim of the third party applicant. Whether the claim of the third party applicant deserves to enter the stage of trial in the wake of above highlighted facts and circumstances would be the basic question involved in this order. My answer would be “emphatic NO”. Thus, the third party applicant is neither a necessary party nor a proper party to this case.

26. Having taken into consideration the essential facts which have bearing on the question involved in this order and also having taken into consideration the propositions of law, the following conclusions are reached. Having claimed that the third party applicant has lost his lands in the Land Acquisition Proceedings, it is for the third party applicant to plead sufficiently and to produce supporting documents showing his title and possession over the acquired land as on the date of Preliminary Notification. The third party applicant cannot rely upon weakness in the case of the claimant, to get himself (third party applicant) impleaded as one of the claimants in this case. The facts narrated in the affidavit filed annexed to the

impleadment of application do not disclose the derivative title of the third party applicant over the acquired land. On the other hand, the flow of title claimed by the third party applicant has stopped somewhere in the year 1944 and the third party applicant has failed to bring on record the flow of title during subsequent period. From 1944, almost 8 decades have passed. The third party applicant has failed to account for the flow of title in respect of acquired land for over a period of 8 decades. The facts of the case are also surrounded by various title deeds, mutation entries, encumbrance certificates, RTC entries etc., which are not questioned by the third party applicant before any competent Court/Authority and not explained by the third party applicant. The third party applicant intends to raise a question to the effect that the records were standing in the name of Government, which question has been considered by the Hon'ble High Court time out of numbers. The Competent Authorities of the State of Karnataka have also deliberated on the question and submitted various reports which are considered by the Competent Authorities as well as by the Hon'ble High Court of Karnataka. Permitting the impleading applicant to get himself impleaded is impermissible in the wake

of above facts and circumstances of the case on hand and also in wake of the propositions of law declared in the aforesaid cited judgments of the Hon'ble Supreme Court and the Hon'ble High Court of Karnataka. Hence, the third party applicant is neither a necessary party nor a proper party to this case. Hence, point No.1 is held in the negative.

27. Point No.2: *The SLAO has not referred the case based on the claim petition of the third party applicant. In other wards, the claim of the third party applicant is not under the reference under Sections 30 and 31 of the 1894 Act.*

28. *The learned Senior Advocate for the impleading applicant has relied upon the following judgments of the Hon'ble High Court of Karnataka: (i) ILR 2018 KAR 661 H.M. Manjunathappa Vs. Joint Registrar of Co-operative Societies, Bengaluru Division and others, and (ii) 2016 (2) KCCR 1002 Ismailsab and others Vs. Special Land Acquisition Officer, Karnataka Industrial Area Development Board and another.*

29. The learned Advocate for the claimant in L.A.C. No. 126/2022 has placed reliance upon the following judgments of the Hon'ble Supreme Court: (i) (2006) 12 SCC 300 in the case of Shyamali Das Vs. Illa Chowdhry and others, (ii) (2002) 9 SCC 426 in the case of Ajjam Linganna and others Vs. LAO, Nizamabad and others, and (iii) (2006) 13 SCC 574 in the case of P.L. Sreekantan and others Vs. P. Sreekumaran Nair and others.

30. After going through the records and also after going through cited judgments, this Court has noticed a subsequent judgment of the Hon'ble Supreme Court in (2013) 11 SCC 296 Ram Prakash Agarwal and another Vs. Gopi Krishnan (Dead through LRs) and others, wherein, the Hon'ble Supreme Court has laid down the law regarding the jurisdiction of this Court to implead a person as a claimant in a reference case under 1894 Act. At para 28 in the following words:

“28. In view of the above, the legal issues involved herein, can be summarized as under:

28.1 An application under Order IX Rule 13 CPC cannot be filed by a person who was not initially a party to the proceedings;

28.2 Inherent powers under Section 151 CPC can be exercised by the Court to redress only such a grievance, for which no remedy is provided for under the CPC;

28.3 In the event that an order has been obtained from the Court by playing fraud upon it, it is always open to the Court to recall the said order on the application of the person aggrieved, and such power can also be exercised by the appellate court;

28.4 Where the fraud has been committed upon a party, the court cannot investigate such a factual issue, and in such an eventuality, a party has the right to get the said judgment or order set aside, by filing an independent suit.

28.5 A person aggrieved may maintain an application before the Land Acquisition Collector for reference under [Section 18](#) or 30 of the Act, 1894, but cannot make an application for impleadment or apportionment before the Reference Court.”

In view of the law laid down by the Hon’ble Supreme Court, in Ram Prakash Agarwal (supra), this court has no jurisdiction to entertain the impleadment application filed by the third party applicant. Hence, point No.2 is held in the negative.

31. Point No.3: *Hence, the following :*

ORDER

IA No.1 filed by the third party applicant under Order 1 Rule 10(2) R/w Section 151 of CPC for his impleadment as a claimant in this case is rejected.

No order as to cost.

(Dictated to the Judgment Writer, transcribed by her, revised by me and after corrections, pronounced in open Court on this the 11th day of December, 2023.)

(D.P. Kumara Swamy),
VI Addl. City Civil & Sessions Judge
C/C of II Addl. City Civil and
Sessions Judge, Bangalore.

